



Combined Synopsis/Solicitation

Solicitation Number: 6991PE26Q000004

FOR:

FB-681 Drydocking and Repair

1. This is a combined synopsis/solicitation for commercial products and/or commercial services prepared in accordance with Revolutionary FAR Overhaul (RFO) Part 12 Acquisition of Commercial Products and Commercial Services. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.
2. Solicitation number 6991PE26Q000004 is issued as a Request For Quotation (RFQ) for routine drydocking and repair of the Fleet Barge (FB)-681.
3. This procurement is an unrestricted procurement under North American Industry Classification System (NAICS) code 336611, Ship Building and Repairing, with a small business size standard of 1300 employees. The Product Service Code (PSC) is J019.
4. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide> and <https://www.acquisition.gov/tar>.
5. The Government intends to award a firm fixed price purchase order with supplemental work as a result of this Combined Synopsis/Solicitation. A list of line-item number(s) and items, quantities, and system of measure is included in Attachment 2, Price Sheet.

6. Description of Requirements

The U.S. Department of Transportation (DOT), Maritime Administration (MARAD), Suisun Bay Reserve Fleet (SBRF), located in Benicia, California, has a requirement to perform routine drydocking and repair of the FB-681 which includes drydocking the vessel, performing surface preparation and coating of the vessels' hull, renewing sacrificial anodes, and performing repairs as specified or as found during the drydocking process.

The period of performance is 30 days after arrival to the Shipyard.

Because this craft is not considered deep-sea worthy, all work must be performed on this vessel in the San Francisco Bay area, such area to include the up-river areas of Sacramento and Stockton.

7. Required Responses

A site visit at SBRF is required. Quotations will not be accepted unless a site visit is attended.

The FB-681 is located at Suisun Bay Reserve Fleet, 2595 Lake Herman Road, Benicia, CA 94510. Please contact Mr. Luis Martinez via email at luis.martinez@dot.gov or telephone at (707) 747-7803 to confirm attendance. Site visits will be scheduled on or before **May 15, 2026**.

Questions or comments regarding this solicitation shall be submitted to the Contracting Officer via email at lynda.luo@dot.gov by **May 18, 2026 at 1:00 PM (PT)**, to allow the Government sufficient time to respond. Any questions received after this date are not guaranteed to be addressed.

Quotations shall be submitted electronically via email to the Contracting Officer at lynda.luo@dot.gov by **May 21, 2026 at 1:00 PM (PT)**. Late quotations may not be considered.

Please reference the solicitation number in the subject line.

8. Solicitation Provisions

8.1 Solicitation Provisions Incorporated By Reference

FAR 52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (SEP 2024)
FAR 52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements Representation (JAN 2017)
FAR 52.204-7	System for Award Management – Registration (NOV 2024) (DOT Class Deviation No. 2025-18 SEP 2025)
FAR 52.212-1	Instructions to Offerors – Commercial Products and Commercial Services (SEP 2023) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-18	Certification Regarding Knowledge of Child Labor for Listed End Products (FEB 2021)
FAR 52.240-90	Security Prohibitions and Exclusions Representations and Certifications (SEP 2025) (DOT Class Deviation No. 2025-24 SEP 2025)
FAR 52.252-5	Authorized Deviations and Provisions (NOV 2020)

*System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in DOT solicitations. Examples include:

- 52.222-25, Affirmative Action Compliance.
- 52.212-3(d), Offeror Representations and Certifications – Commercial Products and Commercial Services.
- 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals – Representation.
- 52.212-3(t), Offeror Representations and Certifications – Commercial Products and Commercial Services.

Contracting officers will not need to consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

9. Contract Clauses

9.1 Contract Clauses Incorporated By Reference

FAR 52.203-17	Contractor Employee Whistleblower Rights (NOV 2023)
FAR 52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017)
FAR 52.204-13	System for Award Management – Maintenance (OCT 2018) (DOT Class Deviation No. 2025-18 SEP 2025)
FAR 52.209-6	Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (JAN 2025) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.209-10	Prohibition on Contracting with Inverted Domestic Corporations (JAN 2025) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.212-4	Contract Terms and Conditions – Commercial Products and Commercial Services (NOV 2023) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-3	Convict Labor (JUN 2003) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-19	Child Labor—Cooperation with Authorities and Remedies (MAR 2026) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-35	Equal Opportunity for Veterans (JUN 2020) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-36	Equal Opportunity for Workers with Disabilities, with Alternate I (JUN 2020) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-37	Employment Reports on Veterans (JUN 2020) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-41	Service Contract Labor Standards (AUG 2018) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (MAY 2014) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-50	Combating Trafficking in Persons (OCT 2025)
FAR 52.222-62	Paid Sick Leave Under Executive Order 13706 (JAN 2022) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.222-90	Addressing DEI Discrimination by Federal Contractors (APR 2026) (DOT Class Deviation No. 2026-24 APR 2026)
FAR 52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2004)
FAR 52.232-33	Payment by Electronic Funds Transfer—System for Award Management (OCT 2018)
FAR 52.232-40	Providing Accelerated Payments to Small Business Subcontractors (MAR 2023)
FAR 52.232-39	Unenforceability of Unauthorized Obligations (JUN 2013)
FAR 52.233-3	Protest After Award (AUG 1996) (DOT Class Deviation No. 2025-25 SEP 2025)
FAR 52.233-4	Applicable Law for Breach of Contract Claim (OCT 2004) (DOT Class Deviation No. 2025-25 SEP 2025)
FAR 52.240-91	Security Prohibitions and Exclusions (SEP 2025) (DOT Class Deviation No. 2025-24 SEP 2025)
FAR 52.252-6	Authorized Deviations in Clauses (NOV 2020)
TAR 1252.201-70	Contracting Officer's Representative (NOV 2022)

TAR 1252.217-71 Delivery and Shifting of Vessel (NOV 2022)
TAR 1252.217-72 Performance (NOV 2022)
TAR 1252.217-73 Inspection and Manner of Doing Work (NOV 2022)
TAR 1252.217-74 Subcontracts (NOV 2022)
TAR 1252.217-76 Liability and Insurance (NOV 2022)
TAR 1252.217-77 Title (NOV 2022)
TAR 1252.217-78 Discharge of Liens (NOV 2022)
TAR 1252.217-79 Delays (NOV 2022)
TAR 1252.217-80 Department of Labor Safety and Health Regulations for Ship Repair (NOV 2022)
TAR 1252.222-72 Contractor Cooperation in Equal Employment Opportunity and Anti-Harassment Investigations (NOV 2022)
TAR 1252.223-71 Accident and Fire Reporting (NOV 2022)
TAR 1252.242-72 Dissemination of Contract Information (NOV 2022)

9.2 Contract Clauses Incorporated in Full Text

FAR 52.222-42 Statement of Equivalent Rates for Federal Hires (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of [5 U.S.C.5341](#) or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage – Fringe Benefits
09010	Electrostatic Spray Painter - WG-9
23960	Welder, Combination, Maintenance - WG-10
23470	Laborer – WG-2

FAR 52.222-49 Service Contract Labor Standards-Place of Performance Unknown (MAY 2014) (DOT Class Deviation No. 2026-24 APR 2026)

(a) This contract is subject to the Service Contract Labor Standards statute, and the place of performance was unknown when the solicitation was issued. In addition to places or areas identified in wage determinations, if any, attached to the solicitation, wage determinations have also been requested for the following: N/A. The Contracting Officer will request wage determinations for additional places or areas of performance if asked to do so in writing by **May 18, 2026 at 1 PM (PT)**.

(b) Offerors who intend to perform in a place or area of performance for which a wage determination has not been attached or requested may nevertheless submit bids or proposals. However, a wage determination shall be requested and incorporated in the resultant contract

retroactive to the date of contract award, and there shall be no adjustment in the contract price.

(End of clause)

TAR 1252.232-70 Electronic Submission of Payment Requests (DEVIATION) (AUG 2025)

a) *Definitions.* As used in this clause -

(1) *Contract financing payment* has the meaning given in FAR 32.001.

(2) *Payment request* means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices," this clause, and the applicable Payment clause included in this contract.

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) *Invoice payment* has the meaning given in FAR 32.001.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Processing system.* The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called *iSupplier*. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform *login.gov*. Vendors submitting invoices are required to submit invoices via *iSupplier* (DELPHI) and authenticated via *www.login.gov*.

(d) *Invoice requirements.* To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in *iSupplier* (DELPHI) shall contain the following:

(1) Invoice number and invoice date.

(2) Period of performance covered by invoice.

(3) Contract number and title.

(4) Task/Delivery Order number and title (if applicable).

(5) Amount billed (by CLIN), current and cumulative.

(6) Total (\$) of billing.

(7) Cumulative total billed for all contract work to date.

(8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.

(9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

(10) The following statement "The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the

quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement.

Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government's payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023)."

(e) *Payment system registration.* All persons accessing the *iSupplier* (DELPHI) will be required to have their own unique user ID and password and be credentialed through *login.gov*.

(1) *Electronic authentication.* See www.login.gov for instructions.

(2) To create a www.login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then www.login.gov will reply with an email confirming the email address.

(3) *iSupplier* (DELPHI) registration instructions: New users should navigate to: <http://einvoice.esc.gov> to establish an account. Users are required to log in to *iSupplier* (DELPHI) every 45 days to keep it active.

(4) *Training on DELPHI.* To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>.

(5) *Account Management.* Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from the system.

(f) *Waivers.* For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Vendors should contact their Contracting Officer's Representative (COR) for procedures.

(g) *Exceptions and alternate payment procedures.* If, based on one of the circumstances set forth in 1232.7002(a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

(End of clause)

9.3 MARAD Clauses

MCL.E-1 Delegation of Inspection and Acceptance (AUG 2005)

The Contracting Officer's Technical Representative shall be delegated the responsibility and authority to conduct inspection and acceptance duties for this contract.

MCL.F-2 Delivery and Shifting of Vessels (AUG 2005)

I. Delivery

- (a) Unless otherwise specified in the IFB or RFP, the Government shall deliver the vessel to the Contractor at a pre-determined location or point of transfer. The Contractor shall have sole responsibility for preparing the vessel for tow.
- (b) Both parties shall mutually agree to any change in the time of transfer due to inclement weather or other unforeseen circumstances.
- (c) Prior (no less than 48 hours) to the delivery of the vessel to the Contractor by the Government, it shall be the Contractor's responsibility to:
 - (1) Obtain United States Coast Guard load-line exemption and "permit to proceed."
 - (2) Have a recognized salvage association or qualified marine surveyor with expertise in towing requirements to certify the adequacy of the vessel to be towed and the tug(s) to be utilized for the tow.
 - (3) Provide the tugs, pilots, towing gear, equipment and any necessary riding crews involved in the vessel transfer.
 - (4) Obtain standard towing liability insurance.
 - (5) Provide sufficient sanitary facilities on the stern in the event a riding crew is necessary.
 - (6) Provide documents to the COTR that shall verify that items (1) through (5) above have been completed.

II. Transfer

- (a) Upon transfer of the vessel, it shall be the Contractor's responsibility to:
 - (1) Complete a custody document which shall be countersigned by either the Government's Fleet Captain, Fleet Superintendent or Acting Fleet Superintendent, or Marine Surveyor for outported vessels.
 - (2) Provide proof to one of the officials referenced in (2.1.1) above that the requirements outlined in Section 1(1.3) of this clause are met.

III. Shifting

While the vessel is in the custody of the Contractor, any necessary towage, shifting of the vessel's berth at Contractor's facility, carriage, or other transportation between the vessel and shop or elsewhere, which may be incidental to the work herein specified, shall be furnished by the Contractor without additional charge to the Government.

IV. Final Delivery

- (a) After preliminary acceptance of the vessel by the Government's designated representative at the Contractor's facility, the Contractor shall make arrangements with the COTR for re-delivery of the vessel to the Fleet site or other location designated by the Government. The Fleet Captain, Fleet

Superintendent or Acting Fleet Superintendent, or Marine Surveyor for outported vessels shall make either conditional acceptance or final acceptance of the vessel at the point of transfer.

- (b) Prior (no less than 48 hours) to the re-delivery of the vessel by the Contractor to the Government, it shall be the Contractor's responsibility to:
 - (1) Obtain United States Coast Guard loadline exemption and "permit to proceed."
 - (2) Have a recognized salvage association or qualified marine surveyor with expertise in towing requirements certify the adequacy of the vessel to be towed and the tug(s) to be utilized for the tow.
 - (3) Provide the tugs, pilots, towing gear, equipment and any necessary riding crews involved in the vessel transfer.
 - (4) Obtain standard towing liability insurance.
 - (5) Provide sufficient sanitary facilities on the stern, in the event a riding crew is necessary.
 - (6) Provide documents to the COTR that shall verify that items (1) through (5) above have been completed.
- (c) Upon transfer of custody of the vessel back to the Government, the Contractor shall complete a standard custody document and have one of the officials referenced in section IV(a) of this clause countersign this document.

MCL.F-3 Dry-Docking and Berthing (AUG 2005)

(a) FOR CREWED VESSELS

- (1) On entering and leaving Contractor's Facilities, the Contractor shall have charge of and be responsible for the vessel within the limitations of this Contract until the time the Contractor's lines are cast off.
- (2) While in dry-dock or on a marine railway, the Contractor shall be responsible for the proper closing of all openings to the vessel's underwater body upon which work is being performed. The Contractor shall keep the COTR or the officer-in-charge of the vessel cognizant of the closure status of all valves and openings upon which the Contractor's workers have been working.

(b) FOR NON-CREWED VESSELS

The Contractor shall have responsibility for the vessel from the point of transfer or delivery of the vessel to the Contractor to final redelivery at point of transfer of the vessel to the Government, which shall normally be at the vessel's reserve fleet or layberth moorings.

MCL.G-2 Schedules and Schedule Updates for Ship Repair (AUG 2005)

- (a) The Contractor shall, within a period of time determined by the Contracting Officer, prepare and submit to the Contracting Officer, with a copy to the COTR, for approval, an electronic copy or other format as directed by the Contracting Officer, a practicable, detailed schedule using appropriate project management software and technology, showing the order in which the Contractor proposes to perform the work, and the dates on which the Contractor contemplates starting and completing the several salient

features of the work (including acquiring materials and equipment). Format of the schedule and supporting information shall be in the electronic form and format directed by the Contracting Officer. The schedule shall include a summary in the form of a progress chart of suitable scale to indicate appropriately the percentage of work scheduled for completion by any given date during the period. If the Contractor fails to submit a complete schedule package within the time prescribed, the Contracting Officer may withhold notice to proceed until the Contractor submits the required schedule.

- (b) Periodically, with each invoice submitted, or at other intervals as directed by the Contracting Officer, the Contractor shall update the schedule showing the actual progress and estimated times and resources at completion compared with initial project elements. Failure to submit updated schedules with the invoice shall be grounds for the Contracting Officer's rejection of the entire invoice. The revised progress schedule information shall be delivered to the Contracting Officer in the format and at the times directed by the Contracting Officer. If, in the opinion of the Contracting Officer, the Contractor falls behind the initial approved schedule, the Contractor shall take steps necessary to improve its progress, including those that may be required by the Contracting Officer, without additional cost to the Government. In this circumstance, the Contracting Officer may require the Contractor to increase the number of shifts, overtime operations, days of work, and/or the amount of facilities, and to submit for approval any supplementary schedule or schedules as the Contracting Officer deems necessary to demonstrate how the required rate of progress will be regained.
- (c) Failure of the Contractor to comply with the requirements of the Contracting Officer under this clause shall be grounds for a determination by the Contracting Officer that the Contractor is not prosecuting the work with sufficient diligence to ensure completion within the time specified in the contract. Upon making this determination, the Contracting Officer may terminate the Contractor's right to proceed with the work, or any separable part of it, in accordance with the default terms of this contract.
- (d) The Contractor shall plan and schedule all Open, Inspect, and Report Items as required by the Specifications such that they are accomplished within the first 25% of the availability, unless otherwise agreed by the Contracting Officer.

MCL.H-2 Supplemental Work Requests (AUG 2005)

- (a) In the complex world of ship repairs, supplemental work often emerges as a result of test, inspection, or discovery of unknown or otherwise differing conditions. The extent and nature of such supplemental work can neither be identified in bid or proposal specifications, and both parties recognize the possibility that such work may arise. Notwithstanding the possibility of the identification of such work, MARAD does not guarantee the award of any supplemental work during contract performance.
- (b) Although MARAD shall be under no obligation to award supplemental work during contract performance, MARAD has provided an estimate for labor (in labor hours) and material (in dollars) for such work in the Schedule (Section B of the solicitation under applicable supplemental work contract line item numbers (CLIN or CLINs)). The offeror shall specify an hourly composite billing rate in its bid or proposal for supplemental work labor. The composite labor-billing rate shall be the rate applicable to labor for all

supplemental work that MARAD orders under the applicable supplemental CLIN of the resulting contract. Any supplies or subcontracts required to complete supplemental work will be charged as a direct cost reimbursable under the applicable supplemental work CLIN; additional indirect charges for materials and subcontracts will not be allowed.

- (c) During the performance of the contract, when conditions indicate a need for supplemental work, the Contracting Officer's Technical Representative (COTR) is empowered to provide technical direction, negotiate the amount of labor and material, and authorize the contractor to perform supplemental work through the issuance of a written authorization. The COTR will issue authorizations for supplemental work in accordance with the following:
- (1) When conditions make supplemental work appropriate, the COTR shall submit to the contractor a supplemental work request that identifies the work to be accomplished.
 - (2) The Contractor shall promptly review each supplemental work request upon receipt and shall, within seventy-two (72) hours of issuance, or sooner, as specified by the COTR, provide the COTR with a proposed price for the supplemental work. Price proposals for all supplemental work must be broken down by labor hours, materials, and subcontracts and allocated to the applicable supplemental work CLIN as appropriate. The contractor shall price the supplemental work to be performed in accordance with the composite labor rate bid or proposed under the supplemental work CLIN in the contract. If necessary, the Contractor shall submit prices for subcontractors, which will be negotiated and treated as direct materials. Once the COTR and contractor agree on the technical direction and price to accomplish the supplemental work, the contractor and COTR shall sign the authorization for supplemental work, which shall be final and binding on the contractor and MARAD. Subject to paragraphs (c.) (3.) through (c.) (6.), if urgent circumstances do not permit waiting for a written authorization, the parties may orally agree and follow up with written confirmation.
 - (3) Notwithstanding the preceding, the COTR shall not authorize and the contractor shall not accept individual supplemental work authorizations from the COTR in excess of the price ceiling established by the Contracting Officer pursuant to paragraph (d.) (10.). In addition, the COTR shall not authorize and the contractor shall not accept a supplemental work authorization from the COTR that, when combined with all previously authorized supplemental work under the contract, exceeds the amount of labor hours and materials specified in the applicable supplemental work CLINs.
 - (4) If the contractor requests an adjustment to the contract completion date in its proposal for the supplemental work, the COTR must refer the issue to the Contracting Officer for resolution, which could include modifying the performance period of the contract. All supplemental work must be accomplished within the contract performance period. The COTR shall not authorize and the contractor shall not accept supplemental work authorizations from the COTR that cannot be completed within the contract performance period.

- (5) If the COTR and contractor cannot agree upon the price, the time required, or any other term of a supplemental work request, the matter shall be referred to the Contracting Officer who may resolve the issue in accordance with the procedures contained in the Changes clause incorporated in the contract. Specifically, the Contracting Officer shall have the option of (i) directing that the Contractor perform the work at a price and within a time period determined by the Contracting Officer to be reasonable, or (ii) withdrawing said supplemental work request. The Contractor's refusal to perform the work as directed by the Contracting Officer shall constitute an event of default under the default clauses of the contract. Disputed issues resulting from supplemental work unilaterally directed by the Contracting Officer may be handled under the disputes clause of the contract.
- (6) If the Contracting Officer directs the Contractor to perform the work at a price and within a time period determined by the Contracting Officer to be reasonable, the Contractor shall maintain and submit to MARAD on a daily basis, report sheets itemizing materials used, the costs and man hours of all labor (direct, indirect, and impact), production schedule activities affected by and/or related thereto, and charges for equipment, whether furnished by the Contractor, subcontractors or others. Material charges shall be substantiated by valid copies of materials and/or suppliers invoices. Such invoices shall be submitted with the daily report sheets or, if not available, as soon as reasonably practicable thereafter. Said daily reports shall also include an indication as to which specific schedule activity(ies) are affected by the order which are the subject of the daily report sheets. To the extent the contractor fails or refuses to submit the aforementioned daily report sheets on a daily basis, such failure or refusal shall constitute a basis for the Contracting Officer to suspend payment for work completed under the supplemental work until appropriate documentation required by the contract is provided.
- (d) The following rules apply to supplemental work authorizations:
- (1) The COTR shall authorize supplemental-work only during the period of performance of the contract.
 - (2) All authorizations for supplemental work are subject to the terms and conditions of the contract and must be within the scope of the contract.
 - (3) If mailed, an authorization is considered "issued" when MARAD deposits the order in the mail. Authorizations may also be issued orally, or by written communications, that is hand-delivered or sent by facsimile or electronic transmission. Oral orders must be followed up by written confirmation as soon as practicable thereafter.
 - (4) Unless otherwise explicitly noted in the authorization for supplemental work, all authorizations for supplemental work are firm fixed price. The agreed upon price shall cover all costs including, but not limited to, direct and indirect labor and material, overhead, delay, acceleration, and disruption caused by the supplemental work. Where the parties are unable to agree that an order establishes mutually agreeable terms, the parties shall note the specific differences that are not agreed upon in the text of the proposed work authorization and refer the matter to the Contracting Officer for resolution pursuant to paragraph (c.)(5.).

- (5) Unless the contractor otherwise explicitly notes in the supplemental work authorization, in consideration of the price of the order, the Contractor remises, releases, and forever discharges MARAD, its officers, agents, employees, and sureties from any and all civil claims and requests for equitable adjustment whatsoever, relating to, arising out of, or connected with said supplemental work authorization. Such release is full and final settlement of all claims and requests for equitable adjustment relating to, arising out of, or connected with the work authorization, as modified, including, but not limited to, all impact claims such as delay, acceleration, disruption, and cumulative effects of the instant and all previously issued supplemental work authorizations. The executed work authorization constitutes a complete and final adjustment of the price and the delivery schedule.
- (6) When MARAD requires supplies or services covered by the contract in an amount less than the total value of the contract, MARAD is not obligated to award supplemental work for the balance of the price bid or proposed for supplemental work. The Contractor is not obligated to honor additional supplemental work in excess of the estimated labor hours identified in the Schedule. This subparagraph does not affect or change the Contracting Officer's authority under the changes clause of the contract.
- (7) Except for limitations of labor hours estimated in the Schedule, there is no limit to the number of supplemental work authorizations that may be issued. MARAD may issue supplemental work authorizations requiring delivery or performance in multiple locations, if the contract contemplates multiple locations.
- (8) In the event a supplemental work authorization covers a series of related procedures, the Contracting Officer may request the Contractor to furnish separate prices for each item of the work.
- (9) If not otherwise provided, the Contracting Officer may request at any time during performance of supplemental work a list of subcontractors performing work covered by the supplemental work, the dollar value of the respective subcontracts, and a description of the subcontracted work and the contractor shall promptly provide the requested information.
- (10) The COTR shall not issue and the contractor shall not accept supplemental work authorizations from the COTR that exceeds \$10,000.00.

MCL.H-3 Indemnity and Insurance (AUG 2005)

The Contractor shall indemnify and save and keep harmless the Government against any or all loss, cost, damage, claim, expense or liability whatsoever because of accident or injury to persons or property of others occurring in connection with the operations under this contract. The Contractor shall secure, pay the premiums for and keep in force until the expiration of this contract, and any renewal thereof, adequate insurance. Such insurance to specifically include liability assumed by the Contractor under this contract.

Each policy of insurance shall contain an endorsement that any cancellation or material change in the coverage adversely affecting the Government's interest shall not be effective unless the

insurer or the Contractor gives written notice of cancellation or change as required to the Contracting Officer. When the coverage is provided by self-insurance, the Contractor shall not change or decrease the coverage without the Administrative Contracting Officer's prior approval.

A certificate of each policy of insurance shall be furnished to the Contracting Officer within ten (10) days after notice of award certifying, among other things, that the policy contains the aforesaid endorsement. The insurance companies providing the above insurance shall be satisfactory to the Government. Notices of policy changes shall be furnished to the Contracting Officer.

The contractor shall provide at the Contractor's expense, within five days of request from the MARAD contracting officer, a copy of all original insurance policies. These may be sent by mail or facsimile machine.

MCL.H-4 Indemnity and Insurance (Additional) (AUG 2005)

(a) INDEMNITY

- (1) The Contractor shall exercise reasonable care and use its best efforts to prevent accidents, injury or damage to all employees, persons and property in and about the work, and to the vessel or portion thereof upon which work is done.
- (2) Except as provided elsewhere in this contract, including any guarantee clause, the MARAD assumes the risk of physical loss or damage to any part of the vessel, its machinery, equipment, stores, and other property including cargo if owned by the Government except to the extent that such loss or damage is caused by the negligence, fault, error, act or omission of the Contractor, its subcontractors, agents, or employees. The burden of proving freedom from fault shall be borne by the Contractor. Unless the loss or damage was caused by the willful misconduct of the Contractor, its executive officers, or superintendents the Contractor's liability under this Contract shall not exceed total damage to the ship or ships including total loss up to \$1,000,000 per accident or occurrence per vessel, and shall not exceed in the aggregate per accident or occurrence the sum of total damage to the ship or ships including total loss up to \$1,000,000 multiplied by the number of MARAD's vessels in the care, custody or control of the Contractor at the location and at the time of the accident or occurrence giving to the loss or damage.
- (3) As to third parties, including, but not limited to, agents, employees or servants of the Contractor, or any subcontractor, the Contractor will defend, indemnify and hold harmless the Government, the vessel, its owners and charterers, from all claims, actions, suits, costs, demands and expense of all descriptions arising out of disease, illness, personal injury, death or property damage to any third party in any way related to or arising out of the performance of work under this contract except to the extent caused by the fault, error, act or omission, or negligence of the Government, its agencies or employees. The burden of proving fault of the Government, its agencies or employees shall be borne by the Contractor.
- (4) As to loss and damage which are the responsibility of the Government, the Government shall be subrogated to any claim, demand, or course of action against

third parties which exists in favor of the Contractor, and the Contractor shall, if required, execute a formal assignment or transfer of such claim, demand, or course of action, and shall aid in securing information, evidence, obtaining of witnesses, and cooperate with MARAD in all matters MARAD may deem necessary in defense of any claim, or suit or appeal from any judgment or in effecting indemnity, provided, further, that nothing contained in this paragraph shall create or give rise to any right, privilege or power in any person except the Contractor, nor shall any person (except the Contractor) be or become entitled thereby to proceed directly against the Government, its agencies or instrumentalities, or to join the Government, its agencies or instrumentalities, as a codefendant in any action against the Contractor brought to determine the Contractor's liability or for any other purpose.

(b) TYPES OF INSURANCE AND MINIMUM COVERAGE. The Contractor shall at its own expense, provide and maintain the following insurances during the entire performance of this contract.

- (1) Workmen's Compensation, including Longshoremen & Harbor Worker's Act coverage - Covering all agents, servants, borrowed servants, statutory employees of Contractor for all compensation and other benefits required by applicable state and federal law or by governmental authority on account of injury, death, sickness or disease - Statutory - no minimum.
- (2) Employers Liability - to cover both injury and death resulting from accident, sickness or disease - \$1 million bodily injury by accident, each accident - \$1 million bodily injury by disease each accident - \$1 million bodily injury by disease in the aggregate.
- (3) Maritime Employers Liability (Jones Act) to cover both injury and death resulting from accident, sickness or disease - \$1 million for each person per occurrence and \$1 million in the aggregate.
- (4) Comprehensive General Liability to include coverage for (but not limited to) products and completed operations liability, property damage liability and contractual liability - \$1 million combined single per occurrence limit for bodily injury and property damage and \$1 million in the aggregate.
- (5) Ship Repairers Legal Liability - coverage to be provided under the standard London or American Institute forms or their equivalent - \$1 million per vessel, per occurrence or such other amount as may be requested.
- (6) Pollution - sudden and accidental liability - \$1 Million per occurrence.

(c) All such insurance shall be subject to the approval of the Division of Marine Insurance and will contain thirty (30) calendar days advance notice of cancellation or of any non-renewal which is the option of the insurer, said notice to be provided to the U.S. Maritime Administration, Division of Marine Insurance MAR-710, 1200 New Jersey Avenue SE, Washington, DC 20590.

(d) FORM OF CONFIRMATION

- (1) The pollution insurance may be a separate policy or part of the Comprehensive General Liability policy, but the coverage must be specifically shown on the required

confirmation of insurance. Excess liability and umbrella liability policies may be used in the excess of primary policies to meet the minimum limit requirements. The United States of America shall be an additional assured in the Ship Repairs Legal Liability policy, Comprehensive General Liability Policy and Pollution Policy. Such policies shall contain a clause statement that there is no recourse against the United States of America for payment of premium. All such insurance shall be subject to the approval of the Division of Marine Insurance and must contain thirty (30) calendar days advance notice of cancellation (without disclaimer) or of any non-renewal which is the option of the insurer, said notice to be provided to the U.S. Maritime Administration, Division of Marine Insurance MAR-710, 1200 New Jersey Avenue SE, Washington, DC 20590.

- (2) The Contractor shall have its insurance broker provide a detailed certificate of insurance, cover note or policy confirming the above required coverage. The confirmation shall name the Contractor and United States of America as assureds and confirm the types of coverage, policy forms, policy periods, deductibles (if any) and underwriters with their percentage of participation. The N.Y. Suable Clause or Service of Suit USA Clause must be confirmed for any Foreign underwriter placements. The policy amounts, terms and conditions, deductibles and underwriters shall at all times be satisfactory to the Maritime Administration.

- (e) The contractor shall insert the substance of this clause in subcontracts under this contract that require work on a Government installation.

MCL.H-5 Marad Reserve Force Safety Rules for Contract Personnel (AUG 2005)

1. Personnel shall be protected by personal flotation devices (life vests) while in the act of embarking or disembarking from any fleet vessel where the possibility of falling into the water exists; while working from small boats, skiffs, or floats; while working near unguarded edges of decks of vessels afloat; or while engaged in any over-water work. At Fleet sites, the flotation devices will be provided by the Fleet and must be returned each day upon departing the Fleet. At outported ships, contractors must furnish their own flotation devices.
2. All passengers riding in personnel boats in MARAD's Reserve Fleet locations shall ride below topside while the boat is in transit, and shall remain below until the boat is properly secured either alongside the accommodation ladder or the pier side, and until the operator notifies the employees to disembark.
3. Personnel aboard all craft shall remain inside of the bulwarks and railings and at no time ever will anyone sit on top of bulwarks or rails.
4. Personnel shall not descend from the deck of any ship onto the accommodation ladder or landing platform to wait for transportation. No more than five (5) descending individuals are permitted on the accommodation ladder at one time and they shall be equally spaced. This directive also applies to ascending ladders. This requirement also pertains to outported ships when personnel descend from the deck of the ship to a pier, or ascend from the pier to the deck of the ship.
5. Ringbuoys with a minimum of 90 feet of nylon line attached are available at the head of each gangway and on the stem of Fleet craft, power barges, tugs, and at the Fleet pier for use by Contractor personnel in emergency situations.

6. When working with mooring lines, all ends of such lines shall be left coiled neatly and areas left clear.
7. Smoking is prohibited aboard vessels except on open decks or in places designated as smoking areas. Smoking is not permitted at all aboard tankers. Also, smoking is prohibited during fueling and cleaning operations of any kind. This includes during the filling or emptying of cans of gasoline, xylene, varsol or any other combustible or flammable liquids or gas.
8. Cigarette butts shall not be thrown over the side of any vessel. While at the dock, no cigarette butts shall be thrown onto the dock or into the water. Sand containers or ashtrays are provided in designated smoking areas. Paper and trash are not to be placed in ashtrays.
9. All debris, oily rags, industrial wipers, etc., will be removed from the ships and working areas. These areas are to be left in clean condition and all materials stowed neatly at the end of each workday. No rags, cups or other trash, oils, fuels, greases, chemicals, lumber, etc., shall be thrown overboard. Fleet Guide will inform personnel of the disposal container locations.
10. Contractor employees are required to wear safety shoes with impact-resistant toes and slip resistant sole material for protection against falling or rolling objects, sharp objects, molten metal, hot surfaces, and oily or wet slippery surfaces. Shoes with loose soles, heels, and laces, or otherwise in poor condition, will not be permitted. Athletic and Cowboy boot-type safety shoes are prohibited.
11. All personnel working at the Fleet shall wear and/or use OSHA/NIOSH approved safety equipment, as required, including personal protective equipment, safety belts and securing lines, and safety glasses.
12. Protective hard hats shall be worn while aboard ships or in any other areas where head injury hazards exist. At MARAD's Reserve Fleet locations, a lighted miner's lamp, supplied by the Fleet, must be worn at all times while in dimly lit areas. The lamps are to be returned to the lamp room each day prior to departing the Fleet. At outported ship locations, contractors are required to provide their own flashlights, etc.
13. Safety glasses or goggles shall be worn while in the vicinity of any operation generating matter which might strike or lodge in the eyes. Such operations include, but are not limited to, scaling rust, water-blasting, Aqua Dyne water-blasting, sandblasting, operating a skill saw, grinding, handling batteries, boiler cleaning, and anchor windlass operations.
14. Ear protection (plugs or muffs) must be worn whenever exposed to loud noises.
15. Consistent with 29 CFR 1910.134, respirators shall be worn while scraping paint, during sandblasting, spraying, or other operations where dust, fumes, airborne particles, or noxious gases may be present.
16. If waterblasting, protective gear shall be worn consisting of a hard hat, safety glasses, face shields, shin guards (baseball type) and steel rigid guard foot protectors.
17. If sandblasting, protective gear consisting of leather gloves, hood, and leather apron shall be worn.
18. When assisting with welding-burning, metal frame flash goggles/glasses shall be worn. The Welder/Burner shall provide the goggles/glasses and shall instruct personnel in their proper use.

19. Contractors must report all accidents resulting in injury, regardless of how slight it may be, to their supervisor, to the Fleet Superintendent, and to the Safety Assistant, or at outported ship locations to the Ship Manager or MARAD representative so that the injury can be treated, if necessary, and recorded. This must be done before leaving the Fleet site or outported location on the day of injury or at the soonest practical time in the event of severe injury.
20. Asbestos Hazard Considerations - Exposure of unprotected personnel to airborne asbestos fibers shall be prevented. While many studies and air sampling have been conducted under varying conditions within the Reserve Fleet environment, no conditions have been found to require special protective clothing or breathing protection. However, all work requiring direct contact with asbestos, conducted within the environment of asbestos, or work in any other way associated with asbestos will be critically evaluated by the cognizant Contractor's supervisor before proceeding. The following general policies will apply:
 - (a) The Contractor shall inform his/her personnel to be alert to the hazards associated with asbestos and the personnel shall be instructed in the use of respirators.
 - (b) When work requires direct contact with asbestos, is conducted within the environment of asbestos, or work is in any way associated with asbestos, Contractor personnel shall be required to wear a half-mask, air- purifying respirator, other than a disposable respirator, equipped with high-efficiency filters.
 - (c) Air pressure/air hoses shall not be used to blow down engine rooms in the process of cleaning when friable asbestos is known or suspected to be present in the area being cleaned. Also, broom sweeping such debris is prohibited. Only vacuum cleaning equipment with special filter attachment is authorized for this purpose, unless vacuuming and/or wet cleaning are not feasible.
 - (d) Major rip-outs, repairs or removal of asbestos located at any MARAD facility or aboard any vessel under MARAD jurisdiction shall not be conducted by Contractor personnel unless authorized by MARAD.
 - (e) Asbestos warning signs shall be posted at the access door of all regulated areas.
21. No work shall be performed in any void, tank, or compartment until such tank, void, or compartment has been declared gas free and possessing sufficient oxygen after being tested by trained personnel.
22. Contractor personnel shall not inspect or perform work in holds or tanks of ships without another contractor personnel observer standing by to get help, if necessary, nor shall an individual work on a ship upon which no other personnel are present.
23. Contractor personnel shall not be allowed to work aloft on staging, masts, etc., without using OSHA prescribed safety belts and securing lines with approved fastenings and without Contractor supervision and instructions during the operation.
24. No openings shall be left unprotected. This includes the removal of hatch boards, bilges, manhole covers, floor plates, and any other opening into which a person may inadvertently step or fall. All areas with an opening which cannot be closed shall be roped off.

25. Gangway doors and sideports on vessels not equipped with gangways shall be closed and secured. In the event the door is missing or it cannot otherwise be closed, the opening shall be chained off or wired with several strands of heavy wire.
26. When using gasoline powered equipment in enclosed spaces, adequate ventilation for the dissipation of exhaust fumes must be provided.
27. Electrical lines, air lines, hoses, etc., used in preservation work shall be triced up on deck clear of walkways and passage areas.
28. Under no circumstances shall any Contractor personnel cross from ship to ship by any means other than gangways properly fitted with hand rails. Prior to installation of a permanent walkway between ships, a portable walkway with rails shall be utilized.
29. When ascending or descending ladders, at least one hand shall be free to grasp hand rail.
30. Gasoline, varsol, xylene, and other flammable or combustible liquids brought onto the ship shall be brought to the attention of the Fleet Representative and, on outported ships, to the attention of the Ship Manager or MARAD representative, and shall be stored in, and dispensed from, OSHA or NIOSH approved safety containers. Such cans shall be inspected and properly marked as follows:
 - (a) Cans painted red and stenciled: "VAR SOL", "XYLENE" or "GASOLINE", as applicable
 - (b) Cans painted yellow and stenciled: "LUBE OIL" or "PRESERVATION OIL," as applicable
 - (c) Cans painted red with a white band and stenciled: "KEROSENE"
31. Drip tanks or pans shall be used when parts are being cleaned and when draining oil or fuel from motors, engines, etc. Varsol, xylene or other solvents will be used from approved safety cans.
32. Safety can valves and flexible metal hose spouts must never be painted. They are to be treated with preservation oil.
33. At MARAD's Reserve Fleet locations, outboard motor operators must leave gas can vents open when they store them on the access can rack.
34. Under no circumstances shall Contractor personnel wear gloves, jewelry (especially neck chains), neck ties, long sleeves, loose clothing, or wear his/her shirt tail out when working around exposed moving machinery.
35. Metal shavings shall be cleaned up from around machines by means of brushes and properly disposed of.
36. Oil spilled in decks, ladders, etc., shall immediately be wiped up and the decks, if necessary, sanded. On vessels sprayed with an oil or paint mixture, all gangways, passages, and areas in use shall be sanded. Appropriate signs shall be posted at all entrances to areas where slippery conditions are considered to exist.
37. Flame burning/cutting and welding shall be kept to a minimum at the Fleet, and shall be accomplished by qualified Contractor personnel only when duly authorized by Fleet Representative, and in accordance with existing fire prevention regulations. Before any welding or hot work is performed, a permit must be issued by the Fleet representative, and a fire watch set. On outported ships, the Ship Manager shall ensure that all hot work is cooled off and there is no danger of fire.
38. Never look directly at arc welding because of the potential for serious eye injury.

39. At MARAD Reserve Fleet locations, prior to any personnel working over the side of, or in a precarious location or position inside of a service craft at the access dock (where applicable), the warning light at the end of the dock shall be activated.
40. Whenever lumber is removed from a structure, nails shall be withdrawn or bent over immediately as part of the operation to prevent possible injury.
41. Liquid fuel operated space heaters shall be operated only when properly installed and vented to the outside. Propane gas bottles are not to be placed in the area of the heater. Gas bottles must be left on the open decks and fed into the heated spaces by a hose. Space heaters are not to be left on when unattended and a CO2 extinguisher must be in the area of the space heater. All electrical space heaters must be UL approved.
42. Contractor Personnel shall promptly report all potentially dangerous areas and conditions to a MARAD representative.
43. The flooding alarm system carries 110 volts and if wiring is cut accidentally it could cause a fire. If when working in the engine room of a ship it becomes necessary to move the ball switches out of the way of an area which is to be preserved, they should be handled very carefully. Do not tilt or disconnect, but merely lift straight up by the ribbon and then lower into place after the job is completed. See that no damage is done to this equipment by wash down hoses, oil spray hoses, etc.
44. Straight ladders, whenever and wherever used, shall be made of metal, except when performing electrical work, then wooden or other non-conductive ladders shall be used, and shall be rigidly inspected prior to use. Use of such ladders shall be kept to a minimum. Whenever using straight ladders to board ships, metal ladders should be used and secured at top to railing of ship. Also, step ladders of the proper size shall be used where warranted. Boxes, chairs, etc., shall not be used in lieu of step ladders. All ladders shall conform to OSHA standards.
45. Defective ladders should be brought to the attention of the Fleet/MARAD representative.
46. The proper tool for each job shall be used. Mushroomed chisels, split hammer handles, or other tools that are in any way unsafe are prohibited. Such defective tools and/or equipment must be taken out of service to be repaired or replaced. Tools shall always be laid down in such a manner as to prevent injuries.
47. All portable electrical equipment shall be properly grounded prior to and during use. This includes fueling hoses, portable electrical equipment, etc. Any equipment with damaged wiring and any damaged plugs must either be repaired before using or replaced.
48. Air compressors shall not be operated until ALL installed safety devices are in working order. Only safety devices designed for the specific machine shall be used. Substitute devices will not be installed.
49. Oxygen and acetylene bottles shall be properly secured during transportation and while aboard ship. Bottles shall be lashed upright, caps in place when not in use, and threads shall be SOAPED if leaks are suspected. Be sure bottles and fittings are protected to prevent oil or grease from contacting valve threads and fittings, which could cause bottles to explode. Whenever oxygen and acetylene are not in use, they should be stored separately with a fire wall between them.
50. Extreme precautions shall be taken when compressed air is used in any operation. Pressurized air hoses are not to be directed toward any part of the human body.

Whenever a gas/ diesel driven air compressor is used for any breathing apparatus, such as an air line respirator, sand blasting helmet, etc., a gas selector alarm and air purifier must be installed. Gauges and relief valves must be in proper working order. Only approved NIOSH and OSHA respirators are to be used.

51. All compressed air hose connections shall be triced together prior to applying compressed air.
52. All hoses and wires (especially oxygen and acetylene hoses) will be disconnected and pulled clear of access doors when workday is over so that the doors may be closed and to prevent leakage of gas into ship. All air hose connections are to be lashed or wired together.

In addition to the foregoing safety rules, other instructions (in writing or orally) may be issued as warranted. Failure to comply with these safety rules can result in disciplinary action to include denial of access to the ship and/or termination for default of the contract.

The contractor shall include this clause in all major subcontracts.

MCL.H-6 Standards of Employee Conduct (AUG 2005)

The Contractor shall be responsible for maintaining satisfactory standards of employee competency, conduct, and integrity, and shall be responsible for taking such disciplinary action with respect to its employees as may be necessary.

MCL.H-7 Environmental Concerns/Asbestos Related/Hazardous Materials/Petroleum and Petroleum Products: Environmental Compliance (AUG 2005)

The Contractor must recognize that MARAD vessels often contain hazardous substances, hazardous materials, petroleum and petroleum products, the handling, removal, storage, transportation and disposal of which is required in the performance of work. Such hazardous substances, hazardous materials, petroleum products include but are not limited to: Asbestos, used in heat and electrical insulation, brake linings, deck covering, boiler refractors, joiner work and other areas; mercury; petroleum products; hydraulic oils; liquid cargo products; lead in marine compounds, products and other areas; chromium; tin in anti-foulants and other areas; zinc; polychlorinated biphenyls (PCBs), found in some electrical cable, rubber gaskets, felt gaskets, thermal insulation material (fiberglass, felt, foam and cork), transformers, capacitors or voltage regulators, switches, reclosers, bushings, electromagnets, adhesives, tapes, oil (leaks, spills as well as electrical equipment, motor, anchor windlasses and hydraulic system containing oil), surface contamination of machinery and other solid surfaces, oil based paint, caulking, rubber isolation mounts, foundation mounts, pipe hangers, light ballasts and plasticizers, and other hazardous substances used aboard ship while in operation and/or in Phase IV maintenance.

In performance of the work by the Contractor, the most recent edition of any applicable statute, regulation, standard, or code shall be in effect. Where a conflict among requirements or specifications exist, the most stringent requirements shall be utilized.

HAZARDOUS SUBSTANCE/HAZARDOUS MATERIALS

The term hazardous substance has the meaning ascribed to it by 42 U.S.C. §9601(14). The term hazardous materials has the meaning ascribed to it by 49 CFR 171.8. The term hazardous material, is as defined for hazardous chemicals in 29 CFR 1910.1200.

Specific Requirement Standards: ASBESTOS

- (a) All of the handling, removal, storage, transportation and disposal work shall be done in strict compliance with all applicable Federal, State and local statutes, regulations, standards, and codes governing asbestos, asbestos abatement, asbestos disposal and any other trade work done in conjunction with asbestos abatement including, but not limited to:

(1) Occupational Safety and Health Administration (OSHA):

Title 29, CFR, Section 1910, Occupational Safety and Health Standards

Title 29, CFR, Part 1915, Occupational Safety and Health Standards for Shipyards

Employment Title 29, CFR, Part 1926, Safety and Health Regulations for Construction

Title 29, CFR, Section 1910.1200 Hazard Communication

Federal Register, dated June 20 and October 17, 1986, Occupational Exposure to Asbestos, Tremolite, Anthophyllite, and Actinolite; Final Rule. (29 CFR Parts 1910 and 1926)

(2) Environmental Protection Agency (EPA)

Title 40 CFR Part 61, Subparts A and M (revised Subpart B) National Emission Standard for Hazardous Air Pollutants (Asbestos) and Part 763 Asbestos.

Title 40 CFR Part 63, National Emission Standard for Hazardous Air Pollutants Subpart II National Emission Standards for Shipbuilding and Ship Repair (Surface Coating)

(3) Maritime Administration (MARAD)

Action Plan for the Control of Asbestos Exposures and Uses in MARAD Programs.

NOTE: This action plan is available upon written request to:

Maritime Administration,

Office of Management Services, MAR-310

400 Seventh Street, SW., Room 7225

Washington, D.C. 20590 ATTN.: Safety Officer.

OTHER HAZARDOUS MATERIALS AND HAZARDOUS, REGULATED AND SPECIAL WASTES

Safe, proper and lawful handling of hazardous substances, hazardous materials and petroleum products is the Contractor's responsibility whether or not it is identified as such in this contract or any attachment herein. The Contractor must determine for itself whether work specified in this contract requires the handling, removal, storage, transportation or disposal of hazardous substances, hazardous materials, petroleum products, and/or hazardous regulated or special wastes and price the bid or proposal accordingly. If available, MARAD will provide to the Contractor information regarding the existence and amount of any such material. No additional charges required for handling, removal, storage, transportation, or disposal of any hazardous substances, hazardous materials, petroleum products and/or hazardous, regulated or special wastes in the specified work will be allowed after award is made. Except to extent such additional changes result from the existence of hazardous substances, hazardous materials,

petroleum products and/or hazardous, regulated or special wastes that could not have been reasonably anticipated. In the event of the discovery of such material, a condition report shall be issued. The cost of such additional work will be fixed at the unit price provided in the bid. The work can proceed only upon written approval by the Contracting Officer. Any modification to the contract that increases the requirement for the handling, removal, storage, transportation and disposal of asbestos or other hazardous substances, hazardous materials, petroleum products, and/or hazardous, regulated or special wastes will be included in the agreed cost of the modification of the contract.

All of the handling, removal, storage, transportation and disposal work is to be done in strict compliance with all applicable Federal, State and local regulations, standards, and codes governing environmental compliance, including, but not limited to the following:

1. ENVIRONMENTAL PROTECTION AGENCY (EPA) TITLE 40, Part 50, National Primary and Secondary Ambient Air Quality Standards Part 63 National Emission Standards for Hazardous Air Pollutants Subpart II National Emission Standards for Shipbuilding and Ship Repair (Surface Coating)
Part 82, Protection of Stratospheric Ozone
Part 110, Discharge of Oil
Part 112, Oil Pollution Prevention
Part 117, Determination of Reportable Quantities for Hazardous Substances
Part 122, EPA Administered Permit Programs: The National Pollutant Discharge Elimination System
Part 125, Criteria and Standards for the National Pollutant Discharge Elimination System
Part 261, Identification and Listing of Hazardous Waste
Part 262, Standards Applicable to Generators of Hazardous Waste Part 279, Standards for the Management of Used Oil
Part 300, National Oil and Hazardous Substance Pollution Contingency Plan Part 302, Designation, Reportable Quantities, and Notification Part 355, Emergency Planning and Notification
Part 370, Hazardous Chemical Reporting: Community Right-to-Know Part 372, Toxic Chemical Release: Community Right-to-Know
Part 761, Polychlorinated Biphenyls Manufacturing, Processing, Distribution in Commerce, and Use Prohibitions
Part 763, Asbestos
2. COAST GUARD (USCG) TITLE 33 CFR,
Part 153, Control of Pollution by Oil and Hazardous Substances, Discharge Removal
Part 154, Facilities Transferring Oil or Hazardous Material in Bulk
Part 156, Oil and Hazardous Material Transfer Operations
3. OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION (OSHA) Title 29 CFR,
Part 1910, Occupational Safety and Health Standards
Part 1915, Occupational Safety And Health Standards for Shipyard employment
Part 1926, Occupational Safety and Health Regulations for Construction
4. RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION (RSPA) TITLE 49 CFR,

Subchapter C, Hazardous Materials Regulations

The Contractor shall be required to demonstrate a thorough knowledge of and satisfactory record of compliance with all applicable Federal, State and local environmental statutes, regulations, standards, codes and guidelines governing environmental compliance as part of the pre-award survey.

The Contractor shall be responsible as the generator of all hazardous, solid, regulated and special waste that results from activities of the Contractor under this agreement. The Contractor is required to arrange for transportation and disposal of regulated waste generated during the ship's operational period if required by this contract. The Contractor shall be responsible for all permitting, reporting, transporting, documenting and for disposing of said wastes and for obtaining all appropriate Environmental Protection Agency Identification Numbers and permits and/or state or local equivalent. In addition, the contractor shall be responsible for:

- (a) conducting required laboratory testing;
- (b) maintaining any and all required records;
- (c) filing any and all reports required by Federal, State or local statute, regulation, standard or guidelines to be filed by the Generator of such waste or the holder of such permits, or numbers; and,
- (d) complying with all applicable Federal, State and local statutes, regulations standards, codes, or guidelines.

The Contractor shall provide all documentation to the COTR pertaining to the sampling, analysis, storage, transportation and disposal of all wastes generated during the contract.

ENVIRONMENTAL MANAGEMENT PLAN

For all work performed, the Contractor shall submit to the designated MARAD COTR or representative, an acceptable hazardous material and hazardous waste management plan to the COTR within one week after award. An acceptable plan shall address, as a minimum, the following requirements:

- A. Environmental Protection Agency (EPA), State and local authority hazardous waste generator identification numbers or registration with the state or local equivalent, of the Contractor, his/her transporters, storage and disposal facilities (TSDFs).
- B. An inventory of all hazardous chemicals, compounds, and other agents brought aboard the vessel accompanied by their respective Material Safety Data Sheets. The Contractor shall provide and maintain the Material Safety Data Sheets for all hazardous materials in accordance with CFR 29 1910.1200.
- C. A list of all anticipated hazardous wastes to be generated and applicable reference to federal, state, and local regulations.
- D. Waste collection and containment procedures in accordance with 40 CFR 262.
- E. A hazardous materials spill and cleanup plan including tools and materials that will be on hand and readily available to facilitate containment and cleanup.

- F. Training certification for the environmental compliance manager and respective employees.
- G. The Contractor will identify and quantify the amount of hazardous waste generated in the course of the MARAD ship repair. Upon completion of the contract, cost and quantities will be summarized and forwarded to the Office of Environmental Activities MAR-820 Rm. 7209, 400 Seventh St., S.W., Washington, D.C. 20590 for annual OMB A-106 reporting requirements.

MCL.H-9 English Language Requirement of On-Site Superintendent

The Contractor's on-site superintendent must be able to speak, read and write English for ease of communication with Government personnel.

MCL.H-10 Supplemental Growth Requirements (AUG 2005)

The labor rate offered in Section B under the Supplemental Repair Work CLIN shall be a yardwide composite labor rate and shall include all management, supervision, overhead, G&A, handling charges, freight and profit. The yardwide composite rate offered by the Contractor shall be binding during the entire period of this Contract for all supplemental work which cannot be accurately described at this time and is not included in other CLIN specifications. The Government may order up to 50 percent more hours than are currently estimated in the CLIN at the same labor rate provided therein.

MCL.H-11 Disposition of Removed Equipment and Scrap (AUG 2005)

Any ship's equipment, fuel, lube oil, supplies, stores, furniture, fixtures, salvage, scrap and other movable property, removed from the vessel shall be and become the property of the Government and any ship's equipment, fuel, supplies, lube oil, stores, furniture, fixtures, salvage, scrap and other movable property so removed shall be disposed of in such manner as the Contracting Officer may direct, provided such direction is given to the Contractor within sixty (60) days from the date of the completion of the work. During said sixty (60) calendar days period such ship's equipment, fuel, lube oil, supplies, stores, furniture, fixtures, salvage, scrap and other moveable property shall be stored and protected by the Contractor without charge to the Government. If within sixty (60) calendar days such direction is not given to the Contractor, it shall, after said sixty (60) calendar days, store and protect the same in the Contractor's facility or outside of the Contractor's facility, at the Contractor's election, for the additional period directed by the Government. Such direction shall be covered by a change order, and the increased contract price for such additional storage shall be determined as provided in the changes provisions of this contract.

MCL.H-12 Maritime Liens, No Authority to Incur (AUG 2005)

- (a) The Contractor is an independent contractor and does not act as an agent for the Government, its agents, its vessels, servants, or employees.
- (b) The Contractor, its agents, servants, and employees, and all persons acting by, at the direction of, or on behalf of the Contractor (including, without limitation any

subcontractors) have no right, power, or authority whatsoever to create, incur, or permit to be placed or imposed (i) any lien or (ii) any right in remedy of any kind, upon or against any vessel upon which work is being performed under this Agreement or against the United States of America or its agents, vessels, servants, or employees. This contractual provision governs notwithstanding any other provision of this contract.

- (c) The Contractor, on behalf of itself, its agents, servants, and employees, and all persons acting by, at the direction of, or on behalf of the Contractor (including, without limitation any subcontractors) hereby waives its right to any maritime lien as well as any right in remedy of any kind based upon a maritime lien theory, upon or against any vessel upon which work has been, is being, or will be performed under this contract or against the United States of America or its agents, servants, or employees, whether known or unknown. The foregoing clause shall not prevent the Contractor's rights to proceed on this contract under the Contract Disputes Act.
- (d) The Contractor shall pay when due all costs and expenses incident to the work performed by it or for its account. Neither the Contractor, nor its agents, servants, and employees, nor persons acting by, at the direction of, or on behalf of the Contractor (including, without limitation, any subcontractors) shall have the power to incur any lien of any kind maritime or otherwise. Such entities shall not (i) create, incur, suffer, or permit to be placed or imposed upon any vessel (or portion thereof), any maritime lien or other lien or encumbrance or charge in any way arising from any act or omission or (ii) incur or allow their subcontractors to incur any debts, obligations, or charges upon the credit of the vessel or against the United States of America or its agents, servants, or employees.
- (e) Although it is not intended that the Contractor shall have the power to incur such liens, the Contractor shall immediately discharge or cause to be discharged any lien or right in remedy of any kind, whether incurred by the Contractor or its subcontractors, other than in favor of the Maritime Administration, which at any time exists or arises in connection with the work done or materials furnished under this contract.
- (f) If any lien or right in remedy is not immediately discharged, MARAD may discharge or cause to be discharged such lien or right in remedy at the expense of the Contractor. MARAD shall have the right to recoup or setoff such funds from any monies owing to the Contractor from any other MARAD contract or any other Government contract. Should a question exist whether there is a valid lien or right in remedy, among other rights, MARAD shall have the right to retain such funds as security without interest.
- (g) From the start of work under this contract the Contractor shall cause a notice, reading as follows (or containing such other information as may be approved by MARAD), in plain type and of such size that the reading matter shall cover a space of at least 2 feet wide by 2 feet high in weather resistant paint to be placed and maintained by the gangway and shall read as follows:

"NOTICE TO SUBCONTRACTORS, MATERIALMEN, AND LABORERS

This vessel is owned by the United States of America, acting by and through the Maritime Administration. The Contractor, and all persons acting by, (prime contractor), at the direction of, or on behalf of the Contractor (including, without limitation, any subcontractors) have no right, power, or authority whatsoever to create, incur, or permit to be placed or imposed any lien or right in remedy of any kind upon any vessel upon which

work is being performed under this Agreement. The Contractor, its agents, servants, and employees, have no authority, either express or implied, to pledge the credit of said vessel."

- (h) At the option of MARAD, the Contracting Officer may require that as a condition either for entry upon a vessel of the MARAD by any subcontractor or in order for any subcontractor to provide necessities to a vessel of the MARAD, that such subcontractor shall on behalf of itself, its agents, subcontractors, servants, and employees, and all persons acting by, at the direction of, or on behalf of such subcontractor waive its right to any maritime lien as well as any right in remedy of any kind based upon a maritime lien theory, upon or against any vessel upon which work has been, is being, or will be performed under this contract or against the United States of America or its agents, servants, and employees, known or unknown. The foregoing clause shall not prevent such subcontractor's right, if any, to proceed under the Contract Disputes Act.
- (i) The foregoing clause shall not deprive MARAD of any of the rights or remedies which it has under the common law.

MCL.H-13 Supervision (AUG 2005)

The Contractor shall provide at all times the quantity and quality of supervision necessary for the effective and efficient management of the operation. All supervisors shall have an intimate knowledge of the various tasks, equipment, and materials so as to be able to properly train and direct the workers in their individual tasks and to maintain and control an effective operation.

Please be aware that:

1. FAR subparts 22.13, Equal Opportunity for Veterans, and 22.14, Employment of Workers with Disabilities, and their related provisions and clauses, are based on statute, and are not covered by the revocation of E.O. 11246, and thus are not affected by FAR Class Deviation 2025-01.
2. Existing United States laws on civil rights/nondiscrimination apply whether or not the company is a government contractor.

10. SUBMITTAL INSTRUCTIONS

In addition to the referenced provision at FAR 52.212-1, Instructions to Offeror – Commercial Items, quoters shall follow the instructions below.

10.1 General Instructions

- (1) Format. Non-price quotations shall be formatted for viewing/printing using 8.5 by 11 inch paper size, 1 inch margins, using at least a Times New Roman 11 point font, with the exception of the project schedule.
- (2) System for Award Management (SAM) Registration. **SAM REGISTRATION IS REQUIRED.** Contractors may obtain information on registration and annual confirmation requirements via SAM accessed through <https://www.sam.gov>. Lack of registration in SAM may make a quoter ineligible for award. Information on how to register and the time required is detailed in FAR 52.204-7.

10.2 Quotation Instructions

At a minimum, include the following:

- (1) Technical Approach. Provide a technical approach narrative addressing how the individual work items outlined in the specifications will be accomplished. The narrative shall not exceed five (5) pages.

The Quoter shall identify any technical assumptions clearly and explain such assumptions in their Technical Approach. If technical assumptions are not noted, it will be expected that the quotation reflects no technical assumptions for award and agrees to comply with all of the terms and conditions set forth in the solicitation and Statement of Work (SOW).

- (2) Tentative Project Schedule. Provide a Gantt chart or similar illustrating your proposed project schedule for the drydock availability with start and finish dates for the individual work items. The vessel is return to the Suisun Bay no later than 30 days after arrival to the Shipyard.

- (3) Subcontractors. Provide a listing of subcontractors who are expected to provide services onboard the vessels at a subcontract price equal to or great than \$10,000. Include the name of the company and their address and the services to be provided by the subcontractor(s). **If the quoter is not proposing any subcontractors with a subcontract price at or above \$10,000, the quoter should indicate this in its quotation.**

- (4) Organization Chart and Key Personnel. Provide an organization chart for the shipyard and a listing of key personnel (name, title, and proposed duties and roles) who are expected to be utilized during the availability and their resumes. Example of key personnel: Ship Superintendent, Quality Assurance Manager, Sub-contractor Superintendent, Project Manager etc. Each resume shall not exceed two (2) pages.

- (5) Experience. Provide a listing of up to three (3) relevant projects completed within the past five (5) years. "Relevant" is defined as a project for drydocking work involving vessels of similar characteristics to those of the FB-681 or larger (e.g., commercial, Navy, Coast Guard and MARAD Ready Reserve Force Vessels), and work similar in scope to the SOW. Each project shall not exceed one (1) page and include the following information as applicable:

- Project name
- Name and address of client organization
- Contract number and order number
- Contract type
- Total contract value
- Period of performance
- Description of work performed
- Contact information for the owner/operator of the vessel and/or Contracting Officer for Public Vessels Points

- (6) Price Quotation. Submit pricing using the price worksheet in Attachment 2. For CLIN 0002.1, provide a fully burdened hourly rate for the unit price. Please ensure that the price quotation is **valid for at least 60 days** from the date of established for receipt of quotations. The price quotation **should be included in a separate document** to facilitate an independent evaluation.

11. Basis of Award and Evaluation Criteria

Award will be made on a Lowest Price Technically Acceptable (LPTA) basis. The Government plans to award a single purchase order to a sole responsible quoter with the lowest total evaluated price meeting or exceeding technical acceptability standards.

The Government plans to evaluate quotations and make award without conducting discussions. Quoters may be given the opportunity to clarify certain aspects of their quotation or resolve minor or clerical errors. The Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary.

10.1 Evaluation Factors

The following factors shall be used to evaluate quotations:

1. Technical Acceptability - Technical information, to include the quoter's technical approach, project schedule, subcontractors, organization chart and key personnel, and experience, will be evaluated to determine if the quoter understands the requirement and has the expertise required to successfully complete the work as described.

Experience is the "type of work" the quoter has performed. For the purpose of evaluating technical experience, "relevant" is defined as a project for drydocking work involving vessels of similar characteristics to those of the FB-681 or larger (e.g., commercial, Navy, Coast Guard and MARAD Ready Reserve Force Vessels), and work similar in scope to the SOW. A quoter without a history of relevant experience for work completed within the past five (5) years will receive an "Unacceptable" rating for the Technical Acceptability factor.

The Government may contact all or some of the references to verify information obtained or follow-up regarding status of responses.

2. Price - Total evaluated price will be the sum of quotations for all contract line items, including optional items.

10.2 Adjectival Rating Definitions

The following ratings definitions will be utilized in the evaluation of the non-price evaluation factors:

Technical Acceptability

Rating	Definition
Acceptable (A)	All of the minimum acceptable criteria are clearly met by the quotation. The quotation meets the performance and technical capability requirements defined in the SOW and solicitation.
Unacceptable (U)	Not all of the minimum acceptable criteria are met by the quotation. An unacceptable quotation contains one or more deficiencies. Quotation fails to meet specified minimum performance and technical capability requirements defined in the SOW and solicitation.

The government may, if requested within 3 days after the notification of contract award (i.e., posting to sam.gov), provide a brief explanation of the award decision to unsuccessful quoters. The brief explanation may include the following information:

- The number of quotations received;
- The name of each quoter receiving an award;
- The total order price; and
- In general terms, the reason the quoter's quotation was not selected, unless the price information shared readily reveals the reason.

Evaluation Method: Only the lowest priced offer will be evaluated for Technical Acceptability. Should the lowest priced offer not receive an acceptable technical rating, the process will continue in order of lowest priced offer until the lowest priced, technically acceptable offer is identified.

11.0 Wage Determinations

The Service Contract Labor Standards wage determination that may be applicable to this requirement, depending on the dry dock location is available online at the following address:

<https://sam.gov/wage-determination/2015-5623/29> Alameda and Contra Costa Counties, CA
<https://sam.gov/wage-determination/2015-5655/26> Solano County, CA

See FAR 52.222-49 in Section 9.2 for details.

ATTACHMENTS:

1. Statement of Work
2. Price Sheet
3. FAR Deviation Text